Directive Principles of State Policy

1. Nature, origin and constitutional role

- **Part IV, 36–51:** 36 defines State as in Part III; **37** states nature/duty; substantive directives mainly **38–51**. **Irish Constitution 1937** influence, with Spanish antecedents.
- **Ambedkar—novel features/instructions to legislature and executive**; parallels the **1935 Act's Instrument of Instructions**. **Granville Austin: Rights + DPSPs = conscience of the Constitution**.
- Aim: welfare State, social/economic democracy and Preamble's justice/liberty/equality/fraternity; go beyond a State confined to policing and defence.
- **Not independently enforceable in court**, but **fundamental in governance**; State has a constitutional duty to apply them in lawmaking. Political accountability/public opinion supply the principal sanction.
- Courts use them to interpret rights and assess statutory purpose/reasonableness; implementing a DPSP does **not automatically cure every constitutional violation**.
- **B.N. Rau:** justiciable/non-justiciable distinction. Reasons for non-justiciability: resource limits, diverse/backward conditions and flexibility over timing/priorities for the new State.



Non-justiciability does not make directives optional.

2. Socialistic principles: justice and welfare

- **38:** just social order; reduce income/status/facility/opportunity inequalities among individuals and groups.
- **39(a):** adequate livelihood for men/women equally; **(b):** material resources distributed for common good; **(c):** avoid wealth/production concentration to common detriment.
- **39(d):** equal pay for equal work; **(e):** protect worker health/strength and children from abuse/economic compulsion; **(f):** healthy development, dignity and childhood/youth protection from exploitation/abandonment.
- **39A:** equal justice/free legal aid. **41:** work, education and public assistance in unemployment, old age, sickness/disability and undeserved want, **within economic capacity/development**.
- **42:** humane working conditions and maternity relief. **43:** living wage, decent life, leisure/social/cultural opportunity. **43A:** worker participation in management. **47:** nutrition, living standards and public health.

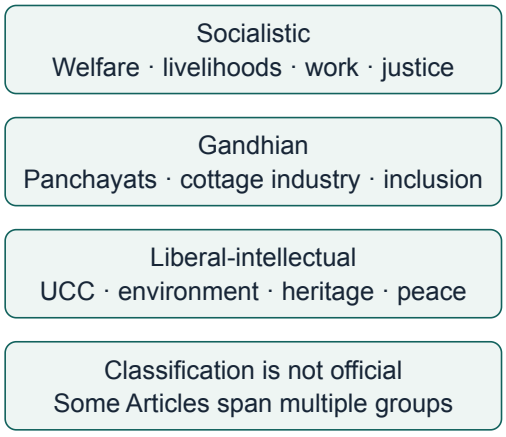
- Wage distinction: **minimum—basic statutory protection; fair—between minimum and living in textbook formulation; living—decent life including wider education/health/social needs**. Actual wage law, not this mnemonic alone, determines entitlement.

3. Gandhian principles

- **40:** village Panchayats with self-government powers. **43:** rural cottage industries on individual/cooperative basis.
- **43B:** voluntary formation, autonomy, democratic control and professional cooperative management.
- **46:** weaker sections, particularly SCs/STs—education/economic interests and protection from injustice/exploitation.
- **47:** prohibit harmful intoxicating drinks/drugs **except medicinal purposes**. **48:** preserve/improve breeds; prohibit slaughter of cows/calves and other milch/draught cattle.
- Categories are **textbook classifications, not constitutional headings**; one Article can serve more than one category.

4. Liberal-intellectual principles

- **44:** Uniform Civil Code for citizens. **45:** early childhood care/education **below six**.
- **48:** scientific agriculture/animal husbandry. **48A:** environment, forests and wildlife.
- **49:** protect monuments/places/objects of artistic/historic interest **declared of national importance**.
- **50:** judiciary–executive separation in State public services. **51:** international peace/security, just honourable relations, respect for international law/treaties, arbitration.

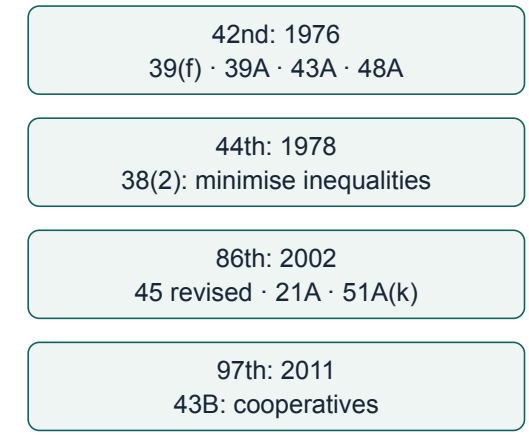


Use categories to remember purposes, not as constitutional compartments.

5. Amendment additions: high-yield sequence

- **42nd, 1976—four changes:** healthy child development **39(f)**; free legal aid **39A**; worker management participation **43A**; environment **48A**.
- **44th, 1978:** minimise specified inequalities **38(2)**.
- **86th, 2002: 45** changed from original under-14 education goal to **below-six care/education**; **21A** makes 6–14 education a right; **51A(k)** gives parental/guardian duty. Relevant provisions operational **2010**.

- **97th, 2011: 43B cooperatives**, effective **2012**. Judicial invalidation of Part IXB for State-only cooperatives does **not remove 43B**.



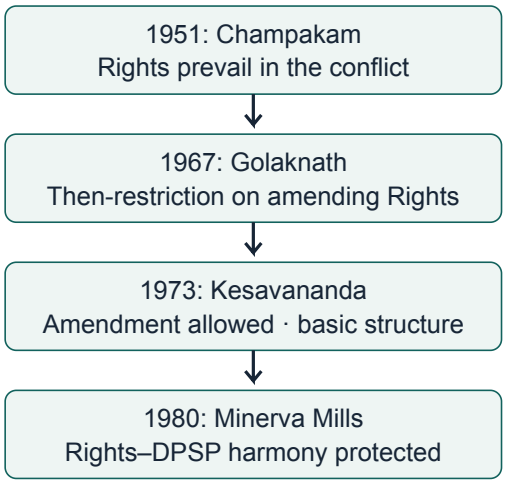
Recall additions separately from their commencement and judicial limits.

6. Rights versus DPSPs: compare without overstatement

- **Rights:** enforceable constitutional guarantees, legal remedies, political democracy plus dignity/social aspects; **DPSPs:** governance goals, no standalone enforcement remedy, social/economic democracy.
- **Rights bind State action and sometimes private conduct**; **DPSPs guide State policy**. Both concern individual **and** collective welfare.
- “Rights negative, DPSPs positive” is a rough contrast: rights also impose positive duties, e.g. **21A**. “Rights need no legislation” is also too absolute, e.g. statutory implementation of **17/23**.
- Courts cannot strike a law down **solely** because it fails a non-justiciable DPSP, but can review it under enforceable constitutional standards. DPSP purpose informs review without replacing those standards.
- Constitutional duty under **37** is more than an optional aspiration; direct litigation remedies depend on rights/statutes and the particular constitutional provision.

7. Conflict and harmony: judgment timeline

- **Champakam Dorairajan 1951:** enforceable Rights prevailed in that conflict; **1st Amendment 1951** introduced protective changes. **4th 1955/17th 1964** also supported land-reform/directive implementation.
- **Golaknath 1967:** Parliament could not abridge Rights under then-view; later displaced. **24th 1971:** affirmed constituent amendment power.
- **25th 1971: 31C** protection for laws implementing **39(b)/(c)**; originally referred to **14/19/31**, now 31 omitted.
- **Kesavananda Bharati 1973:** amend Rights subject to **basic structure**; upheld limited 31C protection but struck the clause excluding review of whether the law genuinely implements those policies.
- **42nd 1976:** attempted protection for laws implementing **all DPSPs**. **Minerva Mills 1980:** invalidated that extension; **harmony/balance between III and IV is basic structure**.
- **Operative principle:** realise welfare goals while preserving constitutional rights; no absolute supremacy of all DPSPs over all Rights. Limited **31C shield from 14/19 for genuine 39(b)/(c) laws** remains; amendments cannot destroy basic structure.
- Memory: **1951 Rights priority → 1967 amendment restriction → 1973 basic structure → 1980 balance**.



The current rule protects constitutional balance, not unlimited primacy.

8. Criticisms and their limits

- **No legal force: K.T. Shah—pious superfluities/resource-dependent cheque; Nasiruddin—New Year resolutions; T.T. Krishnamachari—dustbin of sentiments; K.C. Wheare—manifesto/moral homily; Jennings—pious aspirations**.
- **Illogical mixture: N. Srinivasan/Jennings** criticised arrangement/inconsistent philosophy. Response: integrated social goals can reflect multiple traditions rather than a single school.
- **Conservative/outdated:** Jennings associated them with **Fabian/Webb influences**; this is criticism, not constitutional fact that directives have expired.
- **Potential constitutional conflict: K. Santhanam** feared Centre–State, President–PM and Governor–CM disputes. Failure to implement a DPSP is **not by itself an automatic dismissal ground or unrestricted presidential veto**; operative constitutional powers control.
- Criticisms raise implementation/enforcement questions; they do not erase Article 37's governance duty.

9. Utility and political sanction

- **Alladi/Ambedkar:** responsible government must answer to electorate for ignoring directives. **L.M. Singhvi:** life-giving social-justice philosophy; **M.C. Chagla:** welfare-State ideal; **Austin:** social revolution; **B.N. Rau:** educative moral precepts.
- **M.C. Setalvad:** instructions to all authorities, judicial-review guidance, background to State action and amplification of Preamble.
- Roles: policy continuity across governments; material conditions for effective Rights; opposition scrutiny; performance yardstick; common constitutional programme transcending party manifestos.
- The **Rights–DPSP relationship is complementary**: political participation is weakened when poverty/illiteracy deny effective opportunities.

10. Implementation: economic and labour examples

- **Planning Commission 1950/Five-Year Plans → NITI Aayog 2015**; development/inequality goals. These institutional examples are historical policy choices, not bodies mandated by Part IV.

- Land reforms: remove intermediaries (**zamindar/jagirdar/inamdar**), tenancy security/fair rent, ceilings, surplus redistribution, cooperative farming.
- Historical labour laws: **Trade Unions 1926; Payment of Wages 1936; Minimum Wages/Factories 1948; Industrial Disputes 1947; Mines 1952; Bonus 1965; Contract Labour 1970; employee compensation 1923; Bonded Labour 1976; child-labour law 1986/2016**; maternity **1961**, equal remuneration **1976**.
- **Update:** four Labour Codes—**Wages 2019; Industrial Relations, Social Security, Occupational Safety/Health/Working Conditions 2020**—made effective **21 November 2025**, consolidating **29 laws**. Treat older chapter Acts as historical implementation examples, subject to repeal/savings/transition provisions. Official Labour Ministry release
- **Life-insurance nationalisation 1956; 14 banks 1969; privy purses abolished 1971**. General-insurance takeover began **1971**, but nationalisation Act **1972**, effective **1 January 1973**—distinguish dates. Insurance regulator history

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11. Implementation: legal aid, rural welfare and environment

- **Legal Services Authorities Act 1987:** nationwide legal-aid network/Lok Adalats. Ordinary Lok Adalat resolves through compromise, not a contested merits trial; award deemed decree, final/binding, no ordinary appeal; narrow constitutional challenge is distinct.
- Rural/cottage support: **KVIC/boards, NSIC, coir/silk/handloom/handicraft institutions**; some listed boards are historical/reorganised, not all presently active.
- Programme chronology: **Community Development 1952; Hill Area Development Programme** 1974–75**; Drought-Prone Areas 1973; Minimum Needs 1974; IRDP 1978; Jawahar Rozgar 1989; SGSY 1999; SGRY 2001; rural employment guarantee implementation 2006 under 2005 Act**. Do not treat predecessor programmes as simultaneous current schemes. The chapter's 1960 Hill Area date is corrected to the programme's Fifth-Plan initiation. Planning Commission study
- Environment: **Wildlife Protection 1972; Forest Conservation 1980** (later renamed **Van (Sanrakshan Evam Samvardhan) Adhiniyam**); **Water 1974/Air 1981**, pollution-control boards; **National Forest Policy 1988**.
- Scientific agriculture: seeds, fertilisers, irrigation and better animal-husbandry methods; public-health infrastructure and disease-control programmes; nutrition/living-standard measures.

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12. Implementation: inclusion, local institutions and heritage

- **73rd Amendment 1992**, effective **1993:** Panchayats' constitutional status; three levels with constitutional exceptions, not every State/area forced into an identical arrangement.
- Protective measures/reservations: **Protection of Civil Rights Act 1955**, renamed **1976**; **SC/ST Atrocities Act 1989**. **65th 1990:** combined SC/ST Commission; **89th 2003:** separate NCSC/NCST.
- Commissions: **NCW 1992; NCBC statutory 1993 → constitutional 102nd 2018; NCM statutory 1993; NCPCR constituted 2007 under 2005 law**.
- **EWS 10% central scheme 2019**, enabled by **103rd**; separate from SC/ST/OBC schemes. Rights and constitutional conditions still apply.
- **Judiciary–executive separation:** criminal-procedure reforms implementing **50**; current **BNSS** replaced CrPC with savings from **July 2024**. Executive magistrate functions still exist—separation did not abolish every executive adjudicatory responsibility.

- Heritage: **1951 declaration-of-national-importance Act**; distinguish wider **Ancient Monuments and Archaeological Sites and Remains Act 1958**. India Code
- State cattle-protection laws, social pensions and public healthcare are examples; eligibility ages vary, so the chapter's **65-year** pension illustration is not a universal rule.
- **Panchsheel/non-alignment** illustrate international-peace policy. Financial constraints, social inequality, population pressure, administrative capacity and federal coordination affect implementation.

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13. Directives outside Part IV

- **335, Part XVI:** SC/ST service claims consistently with efficiency; constitutional proviso applies.
- **350A, Part XVII:** mother-tongue primary-instruction facilities for linguistic-minority children.
- **351, Part XVII:** Union duty to promote/develop Hindi for India's composite culture.
- Read with whole Constitution; these are **not Part IV DPSPs**, and their precise legal effect depends on their text/context rather than an automatic identical classification.

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14. One-minute recall and mains structure

- **DPSPs non-justiciable, but fundamental in governance. Classification is scholarly.**
- **42nd: child/legal aid/workers/environment; 44th: inequalities; 86th: early childhood; 97th: cooperatives.**
- **Rights + DPSPs: means and goals; basic structure protects harmony.**
- **Mains:** constitutional goal → implementing law/programme → outcomes/remaining barriers → rights safeguards → practical reforms in funding/accountability/federal coordination.